

Andhra Pradesh Municipalities (Central Government Buildings) Rules, 1965

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State of Andhra Pradesh - Act

Andhra Pradesh Municipalities (Central Government Buildings) Rules, 1965

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Andhra Pradesh Municipalities (Central Government Buildings) Rules, 1965

Rule ANDHRA-PRADESH-MUNICIPALITIES-CENTRAL-GOVERNMENT-BUILDINGS-RULES-1965 of 1965

Published on 30 December 1965

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Andhra Pradesh Municipalities (Central Government Buildings) Rules, 1965

Published vide Notification dated 30.12.1965

In exercise of the powers conferred by Sub-section (1) of the Section 326 of Andhra Pradesh Municipalities Act, 1965 (Act

6 of 1965

), the Government of Andhra Pradesh hereby makes the following rules for the Inspection of Central Government Buildings situated in the municipalities in the State, the same having been previously published at pages 149-151 of Rules Supplement to Part I of the Andhra Pradesh Gazette, dated 1st July, 1965 as required under Clauses (a) and (b) of sub-section (1) of Section 327 of the said Act.

1.

These rules may be called the Andhra Pradesh Municipalities (Central Government Buildings) Rules, 1965.

2.

Whenever the concerned authority of the Central Government contemplates to erect or re-erect, constructs or make material structural alteration of any building specified in Section 259(2) of the Andhra Pradesh Municipalities Act, 1965 (hereinafter referred to as the Act) (not being a building connected with defence, or a building the plan or construction of which ought, in the opinion of the Central Government, to be treated as confidential or secret), the authority shall

(i)

ordinarily give reasonable notice of not less than three months of the proposed work to the municipal council concerned;

(ii)

send along with that notice the plans and site plan connected, with the building clearly indicating the proposed erection, re-erection, Construction, material or structural alteration, as the case may be; and

(iii)

in case it is proposed to deviate from any of the building regulations or from any of the provisions of the Act or any other law or rules or bye-laws made thereunder regulating the construction of buildings and development of land within municipal limits, furnish the reasons for such deviations.

3.

(1)

Soon after the receipt of notice and the plans mentioned in Rule 2, the Commissioner shall place the matter before the Executive Committee with remarks of the Town Planning Officer. The Executive Committee or any person authorised by it in this behalf may inspect the land, building and all plans connected therewith after intimating the State Government and the concerned authority of the Central Government of the date and time of such inspection so as to enable the later to be available at the time of inspection. At the time of inspection a gazetted officer of the municipality or where there is no gazetted officer, the senior most officer-in-charge of the implementation of building laws shall also be present.

(2)

If after such Inspection, the Executive Committee deems fit to make any objections or suggestions with reference to such erection, re-erection, construction or material structural alteration of the buildings, it may submit to the State Government a statement in writing of such objections or suggestions with detailed reasons in support thereof under intimation to concerned authority of the Central Government such objections or suggestions shall ordinarily be submitted to the State Government within one month from the date of receipt of the notice from authority of the Central Government under Sub-section (2) of Section 259 of the Act. If no objections or suggestions are made within the said period, or no further time obtained from the State Government, it shall be presumed that the Executive Committee has no objection or suggestions to make. If any objections or suggestions are made, the concerned authority of the Central Government may await the decision of the State Government under Sub-rule (3).

(3)

The State Government shall within three months from the date of receipt of such objections or suggestions from the Executive Committee consider the same and pass orders thereon under Section 259(4) of the Act after consulting the Director of Town Planning if necessary and the concerned Central Government authority.

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